

**UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION**

FRANCISCO GUERRA,

Plaintiff,

v.

CASE NO.:

The UNITED STATES
OF AMERICA and
CHRISTY L. GREEN,

Defendants.

COMPLAINT

COMES NOW the Plaintiff, **FRANCISCO GUERRA**, by and through his undersigned attorney, and sues Defendants, **The UNITED STATES OF AMERICA**, (“the **UNITED STATES**”), and **CHRISTY L. GREEN** and alleges:

JURISDICTION AND VENUE

1. This is a claim for damages that exceeds Seventy-Five Thousand Dollars (\$75,000.00).

2. The claim against the **UNITED STATES** is being brought pursuant to the Federal Tort Claims Act, 28 U.S.C. §1346(b), §1402(b), §2401(b), and §2671 - §2680.

3. That this Court has jurisdiction pursuant to 28 U.S.C. §1346(b)(1) in that it involves a claim for personal injury caused by the negligent or wrongful act or omission of an employee of the United States of America.

4. Venue is proper in the Middle District Court of Florida – Tampa Division in accordance with and Local Rule 1.02(c) as the subject motor vehicle collision occurred in St. Petersburg, Pinellas County, Florida.

5. All conditions precedent and prerequisites to filing this suit have been met pursuant to the Federal Tort Claims Act, 28 U.S.C. §1346(b), §1402(b), §2401(b), and §2671 - §2680. Plaintiff has provided proper notice to the Defendant, the **UNITED STATES**, and the **UNITED STATES** has formally denied Plaintiffs claims making his claims ripe and at issue.

PARTIES

6. At all times material hereto Plaintiff, **FRANCISCO GUERRA**, was a resident of St. Petersburg, Pinellas County, Florida.

7. At all times material hereto, Defendant, **CHRISTY L. GREEN**, was a resident of St. Petersburg, Pinellas County, Florida.

8. At all times material hereto, Defendant, **CHRISTY L. GREEN**, was acting in the course and scope of her employment with Defendant, the **UNITED STATES**, as an employee of the United States Department of Veterans Affairs.

UNDERLYING FACTS

9. On or about January 12, 2018, Plaintiff, **FRANCISCO GUERRA**, was operating a motor vehicle at or near 38th Avenue N. in St. Petersburg, Pinellas County, Florida.

10. At the same time and place, Defendant, **CHRISTY L. GREEN**, was also operating a motor vehicle at or near 38th Avenue N. in St. Petersburg, Pinellas County, Florida.

11. At the same time and place, Defendant, **CHRISTY L. GREEN**, was acting within the course and scope of her employment with Defendant, the **UNITED STATES**.

12. At the same time and place, Defendant, **CHRISTY L. GREEN**, was operating a motor vehicle owned by Defendant, the **UNITED STATES**.

13. At the same time and place, Defendant, **CHRISTY L. GREEN**, was operating said motor vehicle with the permission and/or consent of Defendant, the **UNITED STATES**.

14. At the same time and place, Defendant, **CHRISTY L. GREEN**, operated said motor vehicle in such a careless and negligent manner so that the Defendant's, the **UNITED STATES**, motor vehicle made an improper lane change and collided into the motor vehicle driven by the Plaintiff, **FRANCISCO GUERRA**.

15. At all times material hereto, Defendant, **CHRISTY L. GREEN**, had a duty to operate said motor vehicle owned by Defendant, the **UNITED STATES**, in a reasonably safe manner with due regard to her surroundings, to maintain control and attention to her surroundings and to drive in accordance with all applicable laws of the State of Florida.

COUNT I

CLAIMS AGAINST THE UNITED STATES OF AMERICA

Plaintiff, **FRANCISCO GUERRA**, reiterates and realleges the foregoing general allegations contained in paragraphs 1 through 15 as if fully set forth herein and would further allege:

16. At the time and place of the subject motor vehicle collision, Defendant, **CHRISTY L. GREEN**, negligently and/or carelessly operated the motor vehicle she was driving so that it collided with the motor vehicle being operated by Plaintiff, **FRANCISCO GUERRA**.

17. Pursuant to the Federal Tort Claims Act, the **UNITED STATES** is liable for the negligent acts of its employees while in the course and scope of employment.

18. As a result of **CHRISTY L. GREEN's** negligence, Plaintiff, **FRANCISCO GUERRA**, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and/or aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future. Additionally, Plaintiff's motor vehicle was damaged and he lost the use of the motor vehicle during the period required for its repair or replacement.

WHEREFORE the Plaintiff, **FRANCISCO GUERRA**, demands judgment against the Defendant, the **UNITED STATES**, in excess of Seventy-Five Thousand Dollars (\$75,000.00) for his damages as set forth above.

COUNT II

NEGLIGENCE AGAINST CHRISTY L. GREEN

Plaintiff, **FRANCISCO GUERRA**, reiterates and realleges the foregoing general allegations contained in paragraphs 1 through 18 as if fully set forth herein and would further allege:

19. Alternatively, if it is determined that Defendant, **CHRISTY L. GREEN**, was not acting within the course and scope of her employment and/or duties with the **UNITED STATES**, or was not at the time an agent of same, the Defendant **CHRISTY L. GREEN** is personally liable for her negligent acts committed while operating a motor vehicle in the State of Florida.

20. At that time and place Defendant, **CHRISTY L. GREEN**, negligently operated or maintained the motor vehicle she was driving so that it collided with the motor vehicle being driven by Plaintiff, **FRANCISCO GUERRA**.

21. As a result of **CHRISTY L. GREEN's** negligence, Plaintiff, **FRANCISCO GUERRA**, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and/or aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future. Additionally, Plaintiff's motor vehicle was damaged and he lost the use of the motor vehicle during the period required for its repair or replacement.

WHEREFORE the Plaintiff, **FRANCISCO GUERRA**, demands judgment against the Defendant, **CHRISTY L. GREEN**, in excess of Seventy-Five Thousand Dollars (\$75,000.00) for his damages as set forth above.

DATED, this 20th day of March, 2020.

/s/ Jason G. Gordillo

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